

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Nora Chanko	Team: Squad #03	CCRB Case #: 201605272	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Saturday, 06/18/2016 1:15 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 12/18/2017	Precinct: 105		
Date/Time CV Reported Mon, 06/20/2016 8:05 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 06/20/2016 8:05 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POF Andre Gayle	22288	943288	105 PCT
2. POF Crystal Collins	10981	948797	105 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POF Crystal Collins	Off. Language: Police Officer Crystal Collins used offensive language towards § 87(2)(b) based on age.	A . Unsubstantiated
B . POF Andre Gayle	Abuse: Police Officer Andre Gayle entered § 87(2)(b) s home.	B . Substantiated
C . POF Andre Gayle	Abuse: Police Officer Andre Gayle threatened to arrest § 87(2)(b)	C . Substantiated
D . POF Andre Gayle	Abuse: Police Officer Andre Gayle threatened to arrest § 87(2)(b)	D . Exonerated

Case Summary

On June 20, 2016, § 87(2)(b) filed this complaint with the CCRB via phone. At approximately 1:15 p.m. on June 18, 2016, § 87(2)(b) was in her home at § 87(2)(b) in Queens. § 87(2)(b) § 87(2)(b) was working on her property. § 87(2)(b) said that § 87(2)(b) did not complete the work to her satisfaction, and did not tell her how much he was going to charge until after he was finished. Because of this, § 87(2)(b) did not want to pay § 87(2)(b) the full amount. § 87(2)(b) called her friend, § 87(2)(b) to take her to the bank. § 87(2)(b) called 911. About 10 minutes later, PO Crystal Collins and PO Andre Gayle of the 105th Precinct arrived. PO Collins told § 87(2)(b) that she had to pay § 87(2)(b) and allegedly used offensive language towards § 87(2)(b) based on her age (**Allegation A**). PO Gayle entered § 87(2)(b)'s home (**Allegation B**). PO Gayle told § 87(2)(b) that she could be arrested for refusing to pay § 87(2)(b) (**Allegation C**). § 87(2)(b) pushed PO Gayle, and PO Gayle told § 87(2)(b) that she could be arrested for assaulting a police officer (**Allegation D**). § 87(2)(b) arrived and § 87(2)(b) and PO Gayle exited her home. § 87(2)(b) § 87(2)(b) paid § 87(2)(b) and the officers left the scene.

No video footage was obtained for this incident.

§ 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b) rejected mediation because she wanted the officers to be disciplined.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- On September 1, 2016, a FOIL registration confirmed that no Notices of Claim were filed by § 87(2)(b) for this incident (01 Board Review).

Civilian and Officer CCRB Histories

- § 87(2)(b) has one previous complaint with the CCRB, § 87(2)(b)
- PO Gayle has been a member of the NYPD for nine years and has not been involved in any previous CCRB complaints.
- PO Collins has been a member of the NYPD for five years and has been involved in one previous complaint, resulting in two allegations. § 87(2)(g)

Potential Issues

- § 87(2)(b) and § 87(2)(b) were uncooperative with the CCRB's attempts to interview them.

Findings and Recommendations

Explanation of Subject Officer Identification

- § 87(2)(b) described both officers as black females in uniform, with medium builds and black braided hair. § 87(2)(b) stated that one officer was 4' 6'' tall, and one officer was 5' 8'' tall. § 87(2)(b) said that the taller officer stood by her front door while the shorter officer stood on the steps below, which could have contributed to the differences in her height estimations. § 87(2)(b) stated that the shorter officer mocked her regarding her age, and the taller officer entered her house and threatened to arrest her twice. PO Collins and PO Gayle are black females; PO Collins is 5' 8'' tall, and PO Gayle is 5' 9'' tall. In her CCRB interview, PO Collins denied all of the allegations. PO Gayle remembered threatening to arrest § 87(2)(b) and entering the corridor of her home. § 87(2)(g)

Allegations Not Pleaded

- Offensive Language:** § 87(2)(b) stated that when he arrived at the scene, he saw § 87(2)(b) and PO Gayle exit § 87(2)(b)'s home. § 87(2)(b) stated that when he, § 87(2)(b) and PO Gayle had a conversation, PO Gayle said that § 87(2)(b) thought she could not be arrested because she was an "old lady." § 87(2)(b) did not allege that any officers said anything regarding her age once § 87(2)(b) arrived, and did not allege that PO Gayle made any such statements. § 87(2)(g)

Allegation A – Offensive Language: Police Officer Crystal Collins used offensive language towards § 87(2)(b) based on age.

§ 87(2)(b) an § 87(2)(b) old woman, called § 87(2)(b) to do some gardening on her property, a single family home at § 87(2)(b) in Queens Village (03 Board Review). § 87(2)(b) did not complete the work to § 87(2)(b)'s satisfaction and did not tell her how much he was going to charge until afterwards. § 87(2)(b) usually goes to the bank with § 87(2)(b) to withdraw money and pay him after he finishes his work, but they began arguing and § 87(2)(b) stated that she would not go to the bank with him. § 87(2)(b) called her friend, § 87(2)(b) so that he could take her to the bank. § 87(2)(b) told § 87(2)(b) that she had to wait for § 87(2)(b) to come so she could pay him. § 87(2)(b) went inside. About 10 minutes later, § 87(2)(b) saw PO Collins and PO Gayle speaking to § 87(2)(b) on the sidewalk in front of her home. § 87(2)(b) observed the conversation from behind the screen door of her home. § 87(2)(b) told PO Collins and PO Gayle that he mowed the lawn and that § 87(2)(b) did not pay him. § 87(2)(b) retreated into her house.

PO Collins and PO Gayle rang her doorbell and "banged" on the door for about five minutes, until § 87(2)(b) went to the door. § 87(2)(b) opened the second door and the storm door, and then stood in the doorway of the second door, which is the entrance to her house. The third door, which leads into her living room, remained closed during the incident. PO Collins stood on the steps and PO Gayle held the storm door open. PO Collins told § 87(2)(b) that she had to pay § 87(2)(b). PO Collins said that § 87(2)(b) was an old woman and called § 87(2)(b).

without having the money to pay him. § 87(2)(b) described PO Collins's tone as "mocking" and "berating," and said that PO Collins grinned when she said that § 87(2)(b) was old, which she said multiple times. § 87(2)(b) did not make any other allegations of offensive language.

§ 87(2)(b) stated that he called the police after § 87(2)(b) refused to pay him (04 Board Review). § 87(2)(b) was waiting in his vehicle outside of § 87(2)(b)'s house when PO Collins and PO Gayle arrived. § 87(2)(b) told them what had happened and the officers went to speak to § 87(2)(b). § 87(2)(b) remained in his vehicle, but could hear the conversation between § 87(2)(b) and the officers. § 87(2)(b) was aggressive and cursed at the officers in Jamaican. § 87(2)(b) believed that the officers understood what she was saying. § 87(2)(b) said that the officers did not want to arrest § 87(2)(b) for refusing to pay him because she was an elderly lady, but they did not make any statements about her age. § 87(2)(b) described PO Collins and PO Gayle as calm, polite, and professional.

§ 87(2)(b) was not present during this portion of the incident (05 Board Review). When § 87(2)(b) arrived to the scene later, PO Gayle told him that § 87(2)(b) thought that she could not be arrested because she was an old lady.

Initially, PO Collins did not remember any details from the incident, only recalling that she and PO Gayle responded to a call for a dispute at § 87(2)(b) (06 Board Review). PO Collins was shown a photo of § 87(2)(b) taken at the CCRB, which refreshed her memory. PO Collins said that when she and PO Gayle arrived at the scene, they exited their vehicle and spoke to the gardener, § 87(2)(b) who had just finished working on § 87(2)(b)'s lawn and stated that § 87(2)(b) had refused to pay him. § 87(2)(b) sat in his truck while PO Collins and PO Gayle spoke to § 87(2)(b). PO Collins did not remember specifically what was said, but said that § 87(2)(b) was upset because she did not want the police involved. PO Collins did not make any statements about § 87(2)(b)'s age. PO Collins did not recall whether PO Gayle made any statements about § 87(2)(b)'s age. PO Collins did not tell § 87(2)(b) she was "an old lady" or mock her age, and did not recall hearing PO Gayle do so.

PO Gayle also did not remember details from the incident until she was shown a picture of § 87(2)(b) (07 Board Review). PO Gayle said that when she and PO Collins arrived, they spoke to § 87(2)(b). PO Gayle then went to speak to § 87(2)(b) and PO Collins remained with § 87(2)(b). PO Gayle did not make any comments to § 87(2)(b) regarding her age. When asked if she called § 87(2)(b) "an old lady," PO Gayle said, "I don't think so." PO Gayle did not remember whether PO Collins spoke to § 87(2)(b) and did not remember PO Collins calling § 87(2)(b) an "old lady" or making any comments regarding her age.

§ 87(2)(g)

Therefore, it is recommended that **Allegation A** be *unsubstantiated*.

Allegation B – Abuse of Authority: Police Officer Andre Gayle entered § 87(2)(b)'s home.

§ 87(2)(b) stated that when she opened the storm door, PO Gayle held it open with her hand, and PO Collins stood on the steps (03 Board Review). The storm door of § 87(2)(b)'s house opens outwards. Behind the storm door there is a space of about 18 inches, after which there is a second door that leads into § 87(2)(b)'s house. After the second door, which opens inwards, there is a space and then a third, wooden door that leads into § 87(2)(b)'s living room and the other areas of her house. The third door was closed during the incident. § 87(2)(b) stood in the doorway of the second door. After § 87(2)(b) told the officers that her friend was going to come and take her to the bank, PO Gayle walked past the storm door, the second door, and § 87(2)(b). § 87(2)(b) had been positioned in the doorway in such a way that there was enough space for PO Gayle to pass. § 87(2)(b) had her back to the wall and PO Gayle was facing the street, blocking the third doorway, and holding onto the second door to keep it open. PO Gayle did not ask if she could step into § 87(2)(b)'s home. § 87(2)(b) said, "You should get out, why are you in here?" but PO Gayle did not say anything. § 87(2)(b) asked for a lieutenant and PO Gayle told § 87(2)(b) that PO Collins was the lieutenant. § 87(2)(b) then asked for a captain. PO Gayle threatened to arrest § 87(2)(b) as discussed below under Allegation C. § 87(2)(b) told PO Gayle that she had to go to her living room but PO Gayle did not move or let her pass. PO Gayle again said she would arrest § 87(2)(b) as discussed further under Allegation D. § 87(2)(b) did not respond to PO Gayle. There was no further conversation between the officers or between § 87(2)(b) and the officers. When § 87(2)(b) arrived, he stood at the foot of the steps to § 87(2)(b)'s home. § 87(2)(b) walked outside and PO Gayle followed, exiting the house.

§ 87(2)(b) said that he saw PO Gayle and § 87(2)(b) exit § 87(2)(b)'s house (05 Board Review). § 87(2)(b) did not enter the house and did not see where they had been specifically.

§ 87(2)(b) said that § 87(2)(b) became aggressive after the officers told § 87(2)(b) that she had to pay him (04 Board Review). § 87(2)(b) "closed the door in their face" and later reopened the door. PO Gayle put her foot in the door and held onto the door with her hand. § 87(2)(b) touched PO Gayle to push her away.

The Google Maps street view of § 87(2)(b) shows a screen door, and a wooden door immediately behind it (16 Board Review). It is not possible to see past the second door of the residence.

PO Gayle stated that she and PO Collins spoke to § 87(2)(b) first, and then PO Collins continued speaking to the gardener while she went to speak to § 87(2)(b) (07 Board Review). PO Gayle rang the bell on § 87(2)(b)'s door multiple times and thought that § 87(2)(b) was trying not to answer the door. After two minutes, § 87(2)(b) opened the door. PO Gayle described a screen door which opened outwards, then a small corridor between the screen door and the door to § 87(2)(b)'s home. § 87(2)(b) stood by her door, while PO Gayle stood in the doorway of the screen door, making it impossible for § 87(2)(b) to close it. PO Gayle said that she stood in the corridor "the whole time" because she wanted to speak to § 87(2)(b) face to face. PO Gayle told § 87(2)(b) that § 87(2)(b) said that he had done work for her and she had not paid him. § 87(2)(b) was speaking at a high pitch and was upset because she did not want the police to be there.

PO Gayle told § 87(2)(b) that she could be arrested for not paying for services, as discussed further under Allegation C. § 87(2)(b) said, “I know the law. Leave me alone,” and pushed PO Gayle, causing her to move backwards. PO Gayle did not remember where § 87(2)(b) s hands made contact with her body. PO Gayle moved § 87(2)(b) s hand away with her hand. § 87(2)(b) objected, but PO Gayle did not remember what she said. PO Gayle did not remember whether § 87(2)(b) tried to close the screen door or go back inside her apartment during the incident. However, PO Gayle did say that if § 87(2)(b) had tried to return inside after pushing her, as discussed further under Allegation D, she would have prevented § 87(2)(b) from entering her apartment. PO Gayle said that she did not go through any doors other than the screen door and did not move past the corridor or the inner door to § 87(2)(b) s apartment.

PO Collins did not remember exactly where she stood during the incident (06 Board Review). PO Collins said that § 87(2)(b) was upset and did not want the police to be involved. At some point while she and PO Gayle were speaking to § 87(2)(b) § 87(2)(b) turned to go back inside her house. PO Collins did not remember § 87(2)(b) closing the door on her and PO Gayle. PO Collins did not hold the door open with her hand and did not recall her partner doing so. PO Collins said that neither she nor PO Gayle tried to prevent § 87(2)(b) from going into her house. PO Collins did not step across the border of the doorway or enter the house and did not recall PO Gayle doing so. § 87(2)(b) came back outside. PO Collins was not sure if § 87(2)(b) went back inside more than once. During this time PO Collins was going back and forth between the steps to § 87(2)(b) s house and the lawn because she was also speaking to § 87(2)(b)

Police are prohibited from making a warrantless and nonconsensual entry into a suspect’s home (Payton v. New York, 445 U.S. 573 (1980)) (08 Board Review). Consent can be established by conduct as well as words, and the failure to ask police officers to leave or indicate that they do not have one’s permission to remain can constitute tacit consent (New York v. Gonzalez, 634 N.Y.S.2d 538 (1995)) (09 Board Review).

§ 87(2)(g)
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§ 87(2)(g)

Therefore, it is recommended that **Allegation B** be *substantiated*.

Allegation C – Abuse of Authority: Police Officer Andre Gayle threatened to arrest § 87(2)(b)

§ 87(2)(b) stated that § 87(2)(b) did not complete the work to § 87(2)(b)'s satisfaction and did not tell her how much he was going to charge until afterwards (03 Board Review). § 87(2)(b) told § 87(2)(b) that she would not go to the bank with him and called § 87(2)(b) to take her to the bank. When PO Collins and PO Gayle arrived, PO Collins told § 87(2)(b) that she had to pay § 87(2)(b). § 87(2)(b) told the officers that she usually goes to the bank with § 87(2)(b) but this time she was waiting for her friend to come take her to the bank. PO Gayle said "I'm going to arrest you," and told § 87(2)(b) to turn around. PO Gayle had "white strings" in her hands and held them out, but did not attempt to touch § 87(2)(b). § 87(2)(b) did not turn around. PO Gayle did not say why she would arrest § 87(2)(b).

§ 87(2)(b) stated that when § 87(2)(b) called him to ask him to do yard work, he told her how much the work would cost (04 Board Review). After he completed the work, § 87(2)(b) refused to pay him. § 87(2)(b) said that he would call the police to file a police report so he could take her to court. § 87(2)(b) continued to refuse to pay him, and § 87(2)(b) called the police. § 87(2)(b) was waiting in his vehicle outside of § 87(2)(b)'s house when PO Collins and PO Gayle arrived. § 87(2)(b) told them what had happened and the officers went to speak to § 87(2)(b). § 87(2)(b) remained in his vehicle, but could hear the conversation between § 87(2)(b) and the officers. § 87(2)(b) was aggressive and cursed at the officers in Jamaican. § 87(2)(b) believed that the officers understood what she was saying. § 87(2)(b) said that the officers did not want to arrest § 87(2)(b) for refusing to pay him because she was an elderly lady. § 87(2)(b) came by and spoke to § 87(2)(b). § 87(2)(b) told § 87(2)(b) that it was wrong not to pay § 87(2)(b) and said that she does this frequently. § 87(2)(b) paid § 87(2)(b) but did not speak to PO Collins or PO Gayle. PO Collins and PO Gayle told § 87(2)(b) not to work for § 87(2)(b) anymore.

In § 87(2)(b)'s first 911 call, he stated that he cut § 87(2)(b)'s grass and trimmed her trees, and she refused to pay him (10 Board Review). § 87(2)(b) also stated that § 87(2)(b) told him to leave or she would call the police. § 87(2)(b) said that he had been doing work for § 87(2)(b) for two years and that she has done this every time.

§ 87(2)(b) stated that when § 87(2)(b) called him, she said that § 87(2)(b) was overcharging her and did not tell her how much he was going to charge until afterwards; as a result of this she wanted to pay him \$150 instead of \$200 (05 Board Review). § 87(2)(b) also complained that § 87(2)(b) did not do the work properly. When § 87(2)(b) arrived, he first spoke to § 87(2)(b) and told him he would pay him. While § 87(2)(b) was not present during either of the threats of arrest alleged by § 87(2)(b), he did state that PO Collins told him that § 87(2)(b) could be arrested. § 87(2)(b), PO Gayle, and § 87(2)(b) then had a conversation. PO Gayle said they could arrest § 87(2)(b) and said that § 87(2)(b) thought she couldn't be arrested because she was an old lady. § 87(2)(b) asked, "Arrest who? Arrest me for

what?” § 87(2)(b) asked what § 87(2)(b) would be arrested for and PO Gayle said she could be arrested for refusing to pay § 87(2)(b). PO Gayle told him to pay § 87(2)(b). § 87(2)(b) asked § 87(2)(b) to take her to the bank but the officers said that if § 87(2)(b) had money there he should pay § 87(2)(b). § 87(2)(b) paid § 87(2)(b) and left.

PO Gayle said that she told § 87(2)(b) that § 87(2)(b) said that he had done work for her and she had not paid him (07 Board Review). § 87(2)(b) said that she did not like the way that he had cut one of the trees, and pointed out a tree to PO Gayle. PO Gayle told § 87(2)(b) that she could be arrested for not paying for services. PO Gayle did not remember whether her partner said that she would arrest § 87(2)(b). PO Gayle did not attempt to restrain § 87(2)(b) in any way. PO Gayle did not remember whether § 87(2)(b) tried to close the screen door or go back inside her apartment during the incident.

PO Collins said that she and PO Gayle were trying to figure out what had happened, and did not know whether it was an “arrest situation” or not (06 Board Review). § 87(2)(b) said that all the work had been done on the lawn, and admitted that she had not paid § 87(2)(b). PO Collins noted that the grass had been freshly cut. § 87(2)(b) said that she needed to go to the bank to pay § 87(2)(b) and also told the officers that her son was going to come. PO Collins did not threaten to arrest § 87(2)(b) and did not recall saying, “I am going to arrest you.” When asked if she told § 87(2)(b) that she could have been arrested, PO Collins said, “I don’t think I ever told her that.” PO Collins did not recall hearing her partner threaten to arrest § 87(2)(b) or make that statement. PO Collins did not recall her or her partner restraining § 87(2)(b) or trying to prevent her movement.

There are numerous offenses described in Section 165.15 of the New York State Penal Law, which covers the theft of services, such as not paying for utilities, restaurant service, or public transit; however, refusing to pay for services rendered by a manual laborer is not covered by this statute (11 Board Review). Larceny offenses cover property, but not services (17 Board Review). Section 198A of the New York State Labor Law states that an employer who does not pay their employee in accordance with the provisions of Article 6 will be found guilty of a misdemeanor for the first offense and a felony for a second or subsequent offense (12 Board Review). Independent contractors are not protected by labor law. An individual is an independent contractor, rather than an employee, if they do not receive benefits, are not precluded from seeking outside work, and have sole decision-making power regarding their work and schedule (Bhanti v. Brookhaven Mem’l Hosp. Med. Ctr., 260 A.D.2d 334 (1999)) (13 Board Review).

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Therefore, it is recommended that **Allegation C** be *substantiated*.

Allegation D – Abuse of Authority: Police Officer Andre Gayle threatened to arrest § 87(2)(b)

§ 87(2)(b) an § 87(2)(b) old woman § 87(2)(b), alleged that after PO Gayle threatened to arrest § 87(2)(b) the first time, § 87(2)(b) told PO Gayle that she had to go to her living room (03 Board Review). PO Gayle did not move or let her pass and again said she would arrest § 87(2)(b). PO Gayle did not explain what she could be arrested for. § 87(2)(b) did not respond to PO Gayle. § 87(2)(b) stated that there was no further conversation between the officers or between her and the officers. PO Gayle and § 87(2)(b) remained in the space between the inner door and the door that leads to her living room until § 87(2)(b) arrived. § 87(2)(b) then paid § 87(2)(b) and the officers left.

§ 87(2)(b) said that § 87(2)(b) became aggressive after the officers told § 87(2)(b) that she had to pay him (04 Board Review). § 87(2)(b) "closed the door in their face." § 87(2)(b) later reopened the door. PO Gayle put her foot in the door and held onto the door with her hand. § 87(2)(b) touched PO Gayle to push her away. PO Gayle calmly explained that she did not want to arrest her and said that it was not a criminal matter.

PO Gayle stated that after she told § 87(2)(b) that she could be arrested for not paying for services, § 87(2)(b) said, "I know the law. Leave me alone," and pushed PO Gayle, causing her to move backwards (07 Board Review). PO Gayle did not remember where § 87(2)(b)'s hands made contact with her body. PO Gayle moved § 87(2)(b)'s hand away with her hand. § 87(2)(b) objected, but PO Gayle did not remember what she said. PO Gayle told § 87(2)(b) that she could be arrested for assaulting a police officer. PO Gayle did not make contact with § 87(2)(b) in any other way during the incident. PO Gayle did not remember whether her partner said that she would arrest § 87(2)(b). PO Gayle did not attempt to restrain § 87(2)(b) in any way. PO Gayle did not remember whether § 87(2)(b) tried to close the screen door or go back inside her apartment during the incident. PO Gayle said that if § 87(2)(b) had tried to go back inside after pushing her, she probably would have tried to arrest her. PO Gayle, a § 87(2)(b) old woman who is § 87(2)(b), did not allege any injuries from the push.

PO Collins did not threaten to arrest § 87(2)(b) and did not recall hearing her partner threaten to arrest § 87(2)(b) (06 Board Review).

Penal Law 120.08 states that a person is guilty of assault on a police officer when they cause serious physical injury to a police officer with intent to prevent a police officer from performing a lawful duty (14 Board Review). Penal Law 240.26 states that a person is guilty of harassment in the second degree when they strike, shove, kick, or otherwise subject a person to such physical contact, or threaten to do the same (15 Board Review).

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Investigator:	_____	_____	_____
	Signature	Print	Date
Squad Leader:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date